

December 16, 2022

The Honorable Charles Schumer
Majority Leader
United States Senate
322 Hart Senate Office Building
Washington, DC 20510

Dear Leader Schumer:

The Association of National Advertisers (ANA) opposes the inclusion of the Children and Teens' Online Privacy Protection Act (also known as COPPA 2.0) in the end-of-year omnibus funding bill. COPPA 2.0 is a flawed approach to privacy for kids and teens, and likely would violate the First Amendment rights of many Americans. Rushing passage of COPPA 2.0 through a year-end package with inadequate process would be a misstep that can be easily avoided. Instead, ANA continues to advocate efforts on a comprehensive, preemptive, privacy law in the next Congress.

As you may know, the ANA creates Marketing Growth Champions by serving, educating, and advocating for over 50,000 industry members that collectively invest more than \$400 billion in marketing and advertising annually. Many of our member companies have their headquarters or significant operations in New York state, and (as you know) the impact of the advertising industry on the New York economy is significant. A recent study by IHS Markit conducted on behalf of The Advertising Coalition (of which ANA is a founding member) found the advertising industry was responsible for more than 1.9 million jobs and generated over \$621 billion in economic activity in sales. By 2026, those numbers are projected to be almost 2.1 million jobs and over \$800 billion in economic activity.

Any changes to the current Children's Online Privacy Protection Act (COPPA) should be part of a comprehensive, preemptive, national privacy law to provide all consumers and businesses clear rules of the road for data use in the modern economy. We have been working closely with Congress on the development of such a law, which is the appropriate way to formulate any new data privacy requirements for kids and teens. These economy-wide, free-speech related, issues should be subject to regular order in Congress, not rushed through at the end of the year.

COPPA 2.0 is not a minor update, but a fundamental change to the balance that Congress struck when it initially limited COPPA to children under 13. Congress understood, and the FTC recognized in its most recent completed rule review, that children under 13 have different online tastes and activities from older users. Expanding COPPA to 13-to-16-year-old individuals would result in applying burdens to most of the Internet. Sixteen-year-olds have online interests that are virtually indistinguishable from those of adults, including sports, news, and popular culture. The bill would result in most online resources needing to apply an age gate, which would be intrusive and annoying for users of all ages, including teens.

In addition, 16-year-old individuals are consumers, and they have a First Amendment right to receive advertising that may interest them. A blanket prohibition on so-called "targeted advertising" would violate that right, especially when a less restrictive option is already available in the form of an opt-out choice. Additionally, this prohibition could cause services for this age

group to be forced to choose a subscription model to make up for lost revenue, creating economic inequity in access to Internet resources that does not exist today.

We look forward to working with you in the next Congress to address these and other privacy issues. However, rushing significant privacy changes at the end of this Congress would be misguided and detrimental to the economy.

Thank you for your consideration of our views.

Sincerely,



Christopher Oswald
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The mission of the ANA is to drive growth for marketing professionals, brands and businesses, the industry, and humanity. The ANA serves the marketing needs of 20,000 brands by leveraging the 12-point ANA Growth Agenda, which has been endorsed by the Global CMO Growth Council. Our membership consists of U.S. and international companies, including client-side marketers, nonprofits, fundraisers, and marketing solutions providers (data science and technology companies, ad agencies, publishers, media companies, suppliers, and vendors).